P.B. No. 139

Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY PARLIAMENT
Bangsamoro Government Center, Cotabato City

THIRD REGULAR SESSION

BANGSAMORO AUTONOMY ACT NO. 68

Begun and held in Cotabato City, on Thursday, the 15th day of September 2022.

AN ACT ESTABLISHING IN THE MUNICIPALITY OF NORTHERN KABUNTALAN, PROVINCE OF MAGUINDANAO DEL NORTE, A LEVEL I GENERAL HOSPITAL TO BE KNOWN AS THE NORTHERN KABUNTALAN GENERAL HOSPITAL, AND APPROPRIATING FUNDS THEREFOR

Be it enacted by the Bangsamoro Transition Authority Parliament assembled:

SECTION 1. ***Establishment of Northern Kabuntalan General Hospital.*** – There shall be established a Level 1 general hospital with twenty-five (25) bed capacity in the Municipality of Northern Kabuntalan, Province of Maguindanao del Norte, to be known as the *"Northern Kabuntalan General Hospital (NKGH)."*

SEC. 2. ***Administration and Supervision.*** – NKGH shall be under the administrative supervision of the Ministry of Health-Bangsamoro Autonomous Region in Muslim Mindanao (MOH - BARMM), which is hereby authorized to determine and approve the organizational structure for the effective and efficient management and operation of the hospital.

The MOH - BARMM shall formulate the necessary guidelines for its operations as a level 1 hospital and ensure funding for the construction of the hospital building and other complementary infrastructures, facilities, and medical equipment, as well as the costs for the necessary maintenance and personnel services.

SEC. 3. ***Site Determination.*** – The MOH - BARMM, in coordination with the Local Government Unit (LGU) of the Municipality of Northern Kabuntalan, shall jointly determine the site of the hospital, in consultation with the LGUs of the Province of Maguindanao del Sur and other relevant stakeholders.

SEC. 4. ***Formulation of Operational Guidelines.*** – The MOH - BARMM shall likewise, within ninety (90) days from the effectivity of this Act, formulate the necessary guidelines for the operation of the NKGH.

The MOH - BARMM shall assume full responsibility for the financial management of the NKGH, including budget allocation, procurement, and expenditures.

A phased transition plan shall be developed and implemented to gradually transfer the financial administration and management of the NKGH to the LGU of Northern Kabuntalan. The transition shall

occur in stages, with benchmarks established to assess the LGU's capacity to handle the financial operations effectively.

The MOH - BARMM shall conduct regular evaluations to determine whether the LGU has demonstrated sufficient financial management capacity, including compliance with accounting standards, efficient procurement practices, and budgetary discipline. Full financial control over the NKGH shall be transferred to the LGU only upon the successful completion of assessments focused on local governance, accountability, and the sustainability of healthcare service delivery.

SEC. 5. ***Appropriations.*** – An initial amount of Fifty Million Pesos (P50,000,000.00) necessary to implement the provisions of this Act shall be charged against the Miscellaneous and Personnel Benefit Fund (MPBF) of the 2025 General Appropriation Act of the Bangsamoro (GAAB). Subsequently, funds necessary for the operations of the hospital shall be included in the annual appropriations.

SEC. 6. ***Separability Clause.*** – The provisions of this Act shall be separable so that if, for any reason, any provision or part hereof is declared invalid or unconstitutional, the remainder of this Act or the provisions not otherwise affected shall remain in full force and effect.

SEC. 7. ***Repealing Clause.*** – All regional laws, executive orders, rules, regulations, or any part thereof, which are inconsistent herewith, are hereby repealed, amended or modified accordingly.

SEC. 8. ***Effectivity.*** – This Act shall take effect fifteen (15) days after the completion of its publication in a newspaper of general circulation in the Bangsamoro Autonomous Region in Muslim Mindanao.

ATTY. PANGALIAN M. BALINDONG
Speaker

This Act was passed by the Bangsamoro Transition Authority Parliament on *Jumada Al-Akhirah* 11, 1446/December 12, 2024.

PROF. RABY B. ANGKAL
Secretary-General

APPROVED:

AHOD B. EBRAHIM
Chief Minister
Date: JAN 09 2025

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